

BSA 2023

Bharatiya Sakshya Adhiniyam, 2023

Bharatiya Sakshya Adhiniyam (BSA), 2023

User Query :

I registered on an online lending application and allowed access to my contacts because the app said it was necessary for processing the loan. After I missed one instalment, the company began calling people from my contact list and telling them about my loan. Some contacts also received messages containing my photograph and personal details. I never agreed to this use of my information. What legal provisions may apply?

Job Id. :

qwen3-30b/Scenario 9/Bharatiya Sakshya Adhiniyam (BSA), 2023

Prepared by :

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Date :

29 August 2026

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

App permission screens/messages and communications to contacts may be electronic records.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant if these records are tendered in a proceeding.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- BSA is secondary here and concerns proof of digital records, not the substantive privacy/data-processing duty.

✓ STRENGTHS & RIGHTS

- 1
- Permission screens and sent messages can establish scope of consent and later disclosure.

✗ RISKS & OBLIGATIONS

- 1
- Do not present BSA as the source of the privacy obligation.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve app permissions/consent screens and recipient messages.

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